

Court No. - 7

Case :- CONTEMPT APPLICATION (CIVIL) No. - 4204 of 2021

Applicant :- Baluwa @ Ballu

Opposite Party :- Sri Prabhu Nath Prasad, Executive Engineer,
D.V.V.N.L. Electric Distribution Division Aliganj Banda

Counsel for Applicant :- Rajesh Kumar

Hon'ble Ajit Kumar,J.

Case called out. Nobody is present on behalf of the applicant.

Put up this matter as fresh on 22.11.2021.

Order Date :- 7.10.2021

Sanjeev

Court No. - 10

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Opposite Party :- Sri Prabhu Nath Prasad, Executive Engineer,
D.V.V.N.L. Electric Distribution Division Aliganj Banda

Counsel for Applicant :- Rajesh Kumar

Counsel for Opposite Party :- Paras Nath Rai, Gaurav Singh

Hon'ble Abdul Moin, J.

Heard.

Instant contempt petition has been filed alleging non-compliance of the judgment and order dated 26.08.2019 passed by the Writ Court in Writ C No.27978 in re: Baluwa @ Ballu vs. U.P. Power Corporation Limited and two others. The writ Court vide order dated 26.08.2019 had disposed of the writ petition with liberty to the petitioner that in the event he applies for under Clause 6.5 of the U.P. Electricity Supply Code, 2005, against the disputed bill within ten days, the same shall be considered in accordance with law and shall be disposed of.

Today Sri Gaurav Singh, learned counsel for the respondent, submits that in pursuance to the order passed by the writ Court an order dated 01.11.2021 has been passed by the competent authority whereby the bill of the petitioner has been revised and an amount of Rs.9,03,405/- has been arrived at and a revised bill has also been issued to the applicant. A copy of the order dated 01.11.2021 along with copy of the revised bill has also been handed over to Sri Rajesh Kumar, learned counsel for the applicant, today in Court itself.

Considering the aforesaid, it is apparent that the respondents are no longer in contempt of the order passed by the writ Court. The contempt petition is accordingly dismissed and the notices are discharged.

However, the applicant would be at liberty to pursue his grievance, if any, against the revised bill.

Order Date :- 22.11.2021

A. Katiyar